

Smt. Kamlesh Kumari Verma v. U.P. Power Corporation

High Court of Judicature at Allahabad · Division Bench · 6 July 2022 · Writ - C No. 11722 of 2022 · Writ - C No. 11722 of 2022 ·
Writ disposed of; petitioner relegated to clause 6.5; coercive action stayed eight weeks.

HEADNOTE

A consumer challenging recovery of electricity dues was relegated, without any opinion on merits, to an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005. If filed within four weeks, the Executive Engineer was to decide it in accordance with law within the next four weeks after hearing. Coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Smt. Kamlesh Kumari Verma, billed on domestic connection No. 1328/129174 (category 10, 2 kW) at Kanhaiya Nagar, Parmeshwar Gate, Firozabad, alleged to have been granted after an estimate deposited on 8 April 2015, sought mandamus to cancel recovery of electricity dues and to have her representation decided after a spot enquiry. Counsel for the distribution licensee stated on instructions that she could file an objection to the impugned demand, to be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-alternate-remedy

HOLDING

Without expressing any opinion on merits, a writ challenging recovery of electricity dues is disposed of by giving the consumer liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks; if so filed, the concerned officer shall decide it in accordance with law within the next four weeks after hearing, and coercive action on the demand stands stayed for eight weeks or till disposal of the objection, whichever is earlier. ¶ 3-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court declined to examine the disputed demand in writ and relegated the consumer to the statutory objection under Para 6.5, with a time-bound decision and limited stay of recovery. ¶ 3-5

clause-6.5-statutory-remedy-disputed-bill Para 6.5 of the Supply Code is treated as the forum for the consumer's objection to the impugned electricity demand. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DISPUTED ELECTRICITY DEMAND AND RECOVERY

The Court expressly declined to opine on merits; respondent no. 3 is to decide the clause 6.5 objection in accordance with law. ¶ 4